

Remedy offer – 17 June 2026: Kegstar – Konvoy

MN-30003

ACCC's summary of Kegstar's remedy proposal

In response to the ACCC's Notice of Competition Concerns published on 13 May 2026 concerning Kegstar Pty Limited's (**Kegstar**) (a wholly owned subsidiary of MicroStar Logistics LLC's (**MicroStar**) proposed acquisition of certain assets of Konvoy Holdings Pty Limited (Receivers and Managers Appointed) (Subject to Deed of Company Arrangement) (**Konvoy**) (**the Acquisition**), Kegstar has offered a remedy in the form of a proposed undertaking pursuant to section 87B of the *Competition and Consumer Act 2010* (Cth) (**Draft Undertaking**).

The objective of the Draft Undertaking is to address the ACCC's competition concerns that would otherwise arise as a consequence of the Acquisition. The Undertaking aims to achieve this objective by placing obligations on Kegstar:

- not include or enforce any exclusivity terms in contracts for the services supplied by Kegstar, in whole or in part, either during or at expiry of the term of a Customer Contract (which includes customers and suppliers), for a period of 3 years,
- to offer to contract with existing Konvoy customers, if requested within 3 months of Completion, at pricing equivalent to that under their contracts with Konvoy as at 1 January 2026, for a period of up to 3 years and on terms provided by existing Kegstar contracts,
- providing customers with an option to purchase kegs from Kegstar following the termination or expiry of the Customer Contract within 3 years from Completion of the Acquisition, and
- incorporating KPIs into Customer Contracts that, if not met or remediated within a reasonable period, would provide customers with the right to terminate, without penalty or exit fee.

Undertaking to the Australian Competition and Consumer Commission

Given under section 87B of the *Competition and
Consumer Act 2010* (Cth) by **Kegstar Pty Ltd**
(ABN 81 157 818 990)

[DRAFT – 17/06/20226]

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draft

1. Person giving the Undertaking

- 1.1. This Undertaking is given to the Australian Competition and Consumer Commission (**ACCC**) by Kegstar Pty Ltd (ABN 81 157 818 990).

draft

2. Background

The parties to the Proposed Acquisition

- 2.1. Kegstar Pty Ltd (ABN 81 157 818 990) (**Kegstar**); and
- 2.2. Konvoy Holdings Pty Ltd (Receivers and Managers Appointment) (Subject to Deed of Company Arrangement) (ABN 66 634 234 549) (**Konvoy**).

The Proposed Acquisition

- 2.3. On 20 February 2026, the ACCC was effectively notified under section 51ABO of the CCA by Kegstar (the **Applicant**) of its intention to acquire certain Australian assets of Konvoy (the **Notification Application**).
- 2.4. The Applicant intends to purchase the following assets of Konvoy:
 - (a) kegs;
 - (b) keg tracking technology hardware and software (known as 'Katch');
 - (c) select employees; and
 - (d) a keg repair and maintenance facility,(the **Proposed Acquisition**).

The ACCC's review

- 2.5. On 9 February 2026, the ACCC published details of the Proposed Acquisition on the Public Acquisitions Register.
- 2.6. The ACCC undertook market inquiries with a range of market participants, including customers, competitors and industry bodies. The ACCC also considered information provided by the parties to the Proposed Acquisition.
- 2.7. On 1 April 2026 the ACCC decided that the Proposed Acquisition was to be subject to phase 2 review.

The ACCC's competition concerns

- 2.8. On 13 May 2026, the ACCC released its Notice of Competition Concerns (**NOCC**) to Kegstar, setting out the ACCC's preliminary view that the Proposed Acquisition would have the effect of substantially lessening competition in the market for Keg Pooling Services in Australia.
- 2.9. The ACCC expressed concerns that:
 - (a) in a future without the Proposed Acquisition, there is a real chance that Konvoy's business would continue, either under new or existing ownership, or at least some of the Assets would be made available to an alternative purchaser who would use them to create competition to Kegstar;
 - (b) it is unlikely that, without the Proposed Acquisition, the assets would exit the market;

- (c) the Proposed Acquisition would remove Kegstar's closest competitor and remove any competitive constraints on the business as the sole provider of keg pooling services;
 - (d) it is unlikely that there will be a timely new entry or expansion into the keg pooling market to replace the loss of competition due to the Proposed Acquisition;
 - (e) any countervailing power of customers, including through using unbundled keg solutions, is not a credible threat to constrain the Kegstar; and
 - (f) alternatives to keg pooling services, such as self-supply, are less likely to be a viable option for smaller brewers which may allow Kegstar to profitably price discriminate against them.
- 2.10. To address the ACCC's competition concerns, the Applicant has offered this Undertaking pursuant to section 87B of the Act.

The Undertaking remedy

- 2.11. The objective of this Undertaking is to address the ACCC's competition concerns as set out above that would otherwise arise as a consequence of the Proposed Acquisition. The Undertaking aims to achieve this objective by placing obligations on Kegstar:
- (a) ensuring the continuity of supply for all Existing Konvoy Customers through commitments provided by Kegstar to offer to contract with Existing Konvoy Customers at pricing equivalent to that under their contracts with Konvoy as at 1 January 2026, notwithstanding the receivership of Konvoy;
 - (b) removing any perceived impediments to the exercise of buyer power by providing commitments to ensure that customers are not locked into arrangements and have full flexibility to utilise other arrangements in place of the services supplied by Kegstar, in whole or in part, either during or at expiry of the term of a Customer Contract;
 - (c) providing practical protection to ensure that customers are protected for a period against any post-merger degradation of service quality and have time to plan to change to an alternative keg logistics solution without penalty if service standards are not maintained; and
 - (d) providing additional assurance that the conditions for competition, including conditions that would permit potential new entry and expansion by an alternative supplier of Keg Pooling Services or other substitutable services, are not in any way adversely affected by the Proposed Acquisition.

3. Commencement of this Undertaking

- 3.1. This Undertaking comes into effect when:
- (a) This Undertaking is executed by Kegstar; and
 - (b) this Undertaking so executed is accepted by the ACCC;
- (the **Commencement Date**).

4. Cessation of Ongoing Obligations

Withdrawal

- 4.1. Kegstar may request withdrawal of this Undertaking pursuant to section 87B of the Act at any time. This Undertaking is taken to be withdrawn on the date the ACCC consents in writing to that withdrawal.

Revocation

- 4.2. The ACCC may, at any time, revoke its acceptance of this Undertaking if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading. Such a revocation must be express and in writing.

Waiver

- 4.3. The ACCC may, at any time, waive any of the obligations contained in this Undertaking. Such a waiver must be express and in writing.

Extension

- 4.4. The ACCC may, at any time, extend the date by which any of the obligations in this Undertaking is to be satisfied. Such an extension must be express and in writing.

Survival

- 4.5. Unless and until this Undertaking is withdrawn in accordance with section 87B(2) of the Act, clauses 1, 2, 3, 4, 10, 12, 14, 15, 16, 17, 18, 19, 20 and 21 survive completion of the obligations in clauses 5, 6, 7, 8, 9, 11 and 13 as applicable.

5. No exclusivity in Customer Contracts

- 5.1. Kegstar will not include or enforce any Customer Exclusivity Provision for a period of 3 years from Completion.

6. No exclusivity in Supplier Contracts

- 6.1. Kegstar will not include or enforce any Supplier Exclusivity Provision for a period of 3 years from Completion.

7. Konvoy Customer options

- 7.1. On and from Completion, for a period of 3 months, Kegstar will make each Existing Konvoy Customer, on request, a written offer capable of acceptance (the **Konvoy Customer Offer**) to enter into a contract with Kegstar for the supply of Keg Pooling Services on the following terms:
- (a) The initial Contract Pricing payable to Kegstar under the contract offered by Kegstar will be equivalent to the Contract Pricing in effect as at 1 January 2026 under the Existing Konvoy Customer Contract;
 - (b) the term of the contract offered by Kegstar will be for a period nominated by the Existing Konvoy Customer of up to three (3) years from Completion; and

- (c) all other terms and conditions of the contract offered by Kegstar will be Kegstar's Standard Terms and Conditions.
- 7.2. Each Konvoy Customer Offer must remain open for acceptance by the relevant Existing Konvoy Customer for a period of not less than 30 Business Days from the date the offer is made.
- 7.3. For the avoidance of doubt, nothing in this clause 7 prevents Kegstar and an Existing Konvoy Customer from negotiating and entering into a contract for the supply of Keg Pooling Services on terms that differ from those described in clause 7.1 (whether as to price, term or otherwise) by agreement between them.

8. Customer option to purchase Kegs

- 8.1. Upon termination or expiration of a Customer Contract, the customer will have the option to purchase from Kegstar a quantity of kegs up to the Keg Purchase Quantity, being kegs of the same keg sizes rented by the customer under the Customer Contract, at Market Value plus, if applicable, the Rebranding Cost (the **Keg Purchase Option**).
- 8.2. A customer wishing to exercise the Keg Purchase Option must give Kegstar written notice of its election to do so (a **Keg Purchase Notice**):
 - (a) no later than 30 days after giving Kegstar written notice of the customer's intention not to renew the Customer Contract; or
 - (b) if the customer has not given Kegstar notice of its intention not to renew the Customer Contract, no later than 30 days before the expiration or termination of the Customer Contract.
- 8.3. The maximum quantity of kegs the customer is entitled to purchase under the Keg Purchase Option (the **Keg Purchase Quantity**) will be calculated by:
 - (a) taking the total number of kegs delivered to the customer during the 12-month period immediately preceding the date of the Keg Purchase Notice; and
 - (b) dividing that number by two and one half (2.5).

The customer may elect to purchase any quantity of kegs up to and including the Keg Purchase Quantity, by keg size and type consistent with the kegs rented by the customer under the Customer Contract.
- 8.4. On receipt of a Keg Purchase Notice, Kegstar must, at the customer's request, provide the customer with a written quote setting out the Market Value of the relevant kegs, including the proposed price per keg by size and the standard commercial terms for the sale and, if applicable, the Rebranding Cost.
- 8.5. Following receipt of a customer's acceptance of a quote issued by Kegstar under clause 8.4, Kegstar must:
 - (a) transfer and sell the relevant kegs to the customer within 30 Business Days of the customer; and
 - (b) use its best endeavours to complete the transfer of the relevant kegs before the Customer Contract ends so as to avoid any interruption to the customer's operations.

- 8.6. Customers exercising this option will be free to use those kegs independently or with a different service provider.
- 8.7. This option will be offered for any contract termination or expiration that occurs within 3 years of Completion.

9. Service level commitment

- 9.1. Kegstar will incorporate key performance indicators (**KPIs**) into all Customer Contracts which cover the following critical service aspects, in the same or similar form to that in clause 9.2 of Kegstar's Standard Form Contract:
- (a) on-time delivery of empty kegs to the customer,
 - (b) timely collection of empty kegs from venues,
 - (c) turnaround time to re-perform keg services,
 - (d) supplier review meetings,
 - (e) billing accuracy, and
 - (f) customer support response times.
- 9.2. If Kegstar materially fails to meet the KPIs in a way that is not remedied within a reasonable period, affected customers will have the right to terminate their contracts before expiry, without any penalties or exit fees.

10. Independent audit

Obligation to appoint an Approved Independent Auditor

- 10.1. Kegstar must appoint and maintain an Approved Independent Auditor to audit and report upon Kegstar's compliance with this Undertaking.

Process for approving a Proposed Independent Auditor

- 10.2. At least 10 Business Days before Completion, Kegstar must provide the ACCC with a notice for a Proposed Independent Auditor in the form prescribed in Schedule 2 to this Undertaking (**Proposed Independent Auditor Notice**), including draft terms of appointment and a draft audit plan.
- 10.3. The Approved Independent Auditor is to be appointed for a period of three years from the Commencement Date. Within 15 Business Days of the end of the Approved Independent Auditor's term, Kegstar must provide the ACCC with the Proposed Independent Auditor Notice. A person who is, or who has been, the Independent Auditor is eligible for reappointment as the Independent Auditor.
- 10.4. If clauses 10.17, 10.18 or 10.19 apply, Kegstar must provide the ACCC with a Proposed Independent Auditor Notice within five Business Days after the relevant event occurs.
- 10.5. The ACCC shall have the discretion to approve or reject in writing the Proposed Independent Auditor identified in the Proposed Independent Auditor Notice.

- 10.6. Without limiting the ACCC's discretion, in deciding whether to approve a Proposed Independent Auditor, the factors to which the ACCC may have regard include whether the:
- (a) person named in the Proposed Independent Auditor Notice or identified by the ACCC has the qualifications and experience necessary to carry out the functions of the Approved Independent Auditor;
 - (b) person named in the Proposed Independent Auditor Notice or identified by the ACCC is sufficiently independent of Kegstar;
 - (c) draft terms of appointment and the draft audit plan are consistent with this Undertaking; and
 - (d) draft terms of appointment and the draft audit plan are otherwise acceptable to the ACCC.

Appointment of the Approved Independent Auditor

- 10.7. After receiving a written notice from the ACCC of its approval of a Proposed Independent Auditor, the draft terms of appointment and draft audit plan, Kegstar must by Completion:
- (a) appoint the person approved by the ACCC as the Approved Independent Auditor on the Approved Terms of Appointment; and
 - (b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

- 10.8. If:
- (a) the Approved Independent Auditor has not been appointed by Completion;
 - (b) the Approved Independent Auditor has not been appointed within 15 Business Days after the Approved Independent Auditor resigns or otherwise ceases to act as the Approved Independent Auditor pursuant to clauses 10.17, 10.18 or 10.19; or
 - (c) the ACCC has not received a Proposed Independent Auditor Notice pursuant to clause 10.2 to 10.4;

then clause 10.9 applies.

- 10.9. If clause 10.8 applies, the ACCC at its absolute discretion may:
- (a) identify and approve a person as the Approved Independent Auditor, including approving the draft terms of appointment and draft audit plan; and/or
 - (b) direct Kegstar to appoint a person who the ACCC has deemed is an Approved Independent Auditor.

Obligations and powers of the Approved Independent Auditor

- 10.10. Kegstar must procure that any proposed terms of appointment for the Approved Independent Auditor include obligations on the Approved Independent Auditor to:

- (a) maintain his or her independence from Kegstar, apart from appointment to the role of Approved Independent Auditor, including not forming any relationship of the types described in paragraph 2.2(c) of Schedule 2 to this Undertaking with Kegstar for the period of his or her appointment;
 - (b) conduct compliance auditing to the Approved Audit Plan;
 - (c) provide the following reports directly to the ACCC:
 - (i) a scheduled written Audit Report as described in clause 10.12; and
 - (ii) an immediate report of any issues that arise in relation to the performance of his or her functions as Approved Independent Auditor or in relation to compliance with this Undertaking by any person named in this Undertaking; and
 - (d) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Auditor under this Undertaking.
- 10.11. Kegstar must procure that any proposed terms of appointment for the Approved Independent Auditor provide the Approved Independent Auditor with the authority to:
- (a) access the facilities, sites or operations of Kegstar's businesses as required by the Approved Independent Auditor;
 - (b) access any information or documents that the Approved Independent Auditor considers necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC; and
 - (c) engage any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor.

Compliance Audit

- 10.12. The Approved Independent Auditor must conduct an audit and prepare a detailed report (**Audit Report**) that includes:
- (a) the Approved Independent Auditor's procedures in conducting the audit, or any change to audit procedures and processes since the previous Audit Report;
 - (b) a full audit of Kegstar's compliance with the Undertaking;
 - (c) identification of any areas of uncertainty or ambiguity in the Approved Independent Auditor's interpretation of any obligations contained in this Undertaking;
 - (d) all of the reasons for the conclusions reached in the Audit Report;
 - (e) any qualifications made by the Approved Independent Auditor in forming his or her views;
 - (f) any recommendations by the Approved Independent Auditor to improve:

- (i) the Approved Audit Plan;
 - (ii) the integrity of the auditing process;
 - (iii) Kegstar's processes or reporting systems in relation to compliance with this Undertaking; and
 - (iv) Kegstar's compliance with the Undertaking; and
- (g) the implementation and outcome of any prior recommendations by the Approved Independent Auditor.
- 10.13. The Approved Independent Auditor is to provide an Audit Report to the ACCC and Kegstar at the following times:
- (a) within 6 months after Completion at which time the Audit Report is to include the results of the initial audit and any recommended changes to the Approved Audit Plan, including the Approved Independent Auditor's proposed procedures and processes for conducting the audit (**Establishment Audit**);
 - (b) every 12 months from the date of the Establishment Audit, until the ACCC confirms in writing to Kegstar that it is satisfied that Kegstar has fulfilled its obligations pursuant to this Undertaking.
- 10.14. Kegstar must implement any recommendations made by the Approved Independent Auditor in Audit Reports and notify the ACCC of the implementation of the recommendations within 10 Business Days after receiving the Audit Report or such other period as agreed in writing with the ACCC.
- 10.15. Kegstar must comply with any direction of the ACCC in relation to matters arising from the Audit Report within 10 Business Days after being so directed (or such other period as agreed in writing with the ACCC).

Kegstar's obligations in relation to the Approved Independent Auditor

- 10.16. Without limiting its obligations in this Undertaking, Kegstar must:
- (a) comply with and enforce the Approved Terms of Appointment for the Approved Independent Auditor;
 - (b) maintain and fund the Approved Independent Auditor to carry out his or her functions including:
 - (i) indemnifying the Approved Independent Auditor for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Auditor of his or her functions as the Approved Independent Auditor except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Independent Auditor;
 - (ii) providing and paying for any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor; and

- (c) not interfere with, or otherwise hinder, the Approved Independent Auditor's ability to carry out his or her functions as the Approved Independent Auditor, including:
 - (i) directing Kegstar personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 10;
 - (ii) providing access to the facilities, sites or operations of Kegstar's businesses as required by the Approved Independent Auditor;
 - (iii) providing to the Approved Independent Auditor any information or documents that they consider necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC;
 - (iv) not requesting any information relating to the compliance audit from the Approved Independent Auditor without such a request having been approved by the ACCC; and
 - (v) not appointing the Approved Independent Auditor, or have any Agreements with the Approved Independent Auditor, to utilise the Approved Independent Auditor's services for anything other than compliance with this Undertaking until at least 12 months after the Approved Independent Auditor ceases to act in the role of the Approved Independent Auditor.

Resignation, revocation or termination of the Approved Independent Auditor

- 10.17. Kegstar must immediately notify the ACCC in the event that the Approved Independent Auditor resigns or otherwise stops acting as the Approved Independent Auditor.
- 10.18. The ACCC may revoke an Approved Independent Auditor's status as the Approved Independent Auditor if the ACCC becomes aware that any information provided to it in connection with the appointment of the Approved Independent Auditor was incorrect, inaccurate or misleading.
- 10.19. The ACCC may approve, pursuant to clause 10.5, any proposal by, or alternatively may direct, Kegstar to terminate the appointment of the Approved Independent Auditor if in the ACCC's view the Approved Independent Auditor acts inconsistently with the provisions of this Undertaking and/or the Approved Terms of Appointment or the Approved Independent Auditor fails to perform their role to an adequate standard.

11. Notification to Customers

- 11.1. Kegstar will notify all affected customers in writing about the key terms of the Undertaking once it becomes effective.
- 11.2. This notification will occur promptly after the ACCC's acceptance of the Undertaking so that customers understand the options and benefits available to them.

12. Commencement

- 12.1. The Undertaking becomes effective once it is accepted by the ACCC.

- 12.2. If for any reason the Proposed Acquisition does not proceed to Completion, the Undertaking will not come into force.

13. Review of undertaking

- 13.1. If:

- (a) Kegstar is unable to comply with its obligations under this Undertaking; or
- (b) Kegstar or the ACCC believes that it is necessary to seek some variation due to changed circumstances,

then Kegstar and the ACCC agree that they will review the Undertaking and negotiate in good faith the variation or withdrawal of all or any of the terms of the Undertaking in light of such circumstances having regard to the need to prevent any substantial lessening of competition in any relevant market.

14. Enforceability and variation or withdrawal

Enforceability

- 14.1. Kegstar acknowledges that, once accepted by the ACCC, the Undertaking is legally binding pursuant to section 87B of the CCA.

Variation or withdrawal only by consent

- 14.2. Kegstar can only withdraw or vary the Undertaking with the ACCC's consent.

15. Disclosure of this Undertaking

- 15.1. [Kegstar and the ACCC agree that [#confidential sections] will remain confidential subject to clauses 15.2 and 15.3.]
- 15.2. Kegstar acknowledges that the ACCC may provide the Approved Independent Auditor with a copy of this Undertaking which includes unredacted versions of any confidential parts of this Undertaking referred to in clause 15.1.
- 15.3. Kegstar acknowledges that the ACCC may, subject to clause 15.1:
- (a) make this Undertaking publicly available;
 - (b) publish this Undertaking on its Public Section 87B Undertakings Register and Public Mergers Register; and
 - (c) from time to time publicly refer to this Undertaking.
- 15.4. Nothing in clause 15.1 or the confidential parts of this Undertaking referred to in clause 15.1 prevents the ACCC from disclosing such information as is:
- (a) required by law;
 - (b) permitted by section 155AAA of the Act;
 - (c) necessary for the purpose of enforcement action under section 87B of the Act; or

- (d) necessary for the purpose of making such market inquiries as the ACCC thinks fit to assess the impact on competition arising in connection with this Undertaking.
- 15.5. Nothing in clause 15.1 or the confidential parts of this Undertaking referred to in clause 15.1 prevents the ACCC from using the information contained in this Undertaking for any purpose consistent with its statutory functions and powers.

16. Obligation to procure

- 16.1. Where the performance of an obligation under this Undertaking requires a Related Body Corporate of Kegstar to take or refrain from taking some action, Kegstar will procure that Related Body Corporate to take or refrain from taking that action.

17. No Derogation

- 17.1. This Undertaking does not prevent the ACCC from taking enforcement action at any time whether during or after the period of this Undertaking in respect of any breach by Kegstar of any term of this Undertaking.
- 17.2. Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that Kegstar does not fully implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

18. Change of Control

- 18.1. In the event that a Change of Control is reasonably expected to occur, Kegstar must:
- (a) notify the ACCC of this expectation as soon as practicable; and
 - (b) only implement a Change of Control to another person or entity if that person or entity has given a section 87B undertaking to the ACCC that requires it to comply with the same obligations as are imposed on Kegstar pursuant to this Undertaking, or on terms that are otherwise acceptable to the ACCC, unless the ACCC has notified Kegstar in writing that a section 87B undertaking under this clause is not required.

19. Costs

- 19.1. Kegstar must pay all of its own costs incurred in relation to this Undertaking.

20. Notices

Giving Notices

- 20.1. Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Email address: mergers@accc.gov.au
Attention: Executive General Manager
Mergers and Exemptions Assessment Division

With a copy sent to: mergersru@accc.gov.au
Attention: Director, Remedies Unit
Mergers and Exemptions Assessment Division

- 20.2. Any notice or communication to Kegstar pursuant to this Undertaking must be sent to:

Name: MinterEllison

Address: [#]

Email Address: [#]

Attention: [#]

With Copy sent to:

Name: Kegstar

Email Address: [#]

Attention: [#], Kegstar

- 20.3. If sent by post, notices are taken to be received three Business Days after posting (or seven Business Days after posting if sent from a place outside of Australia).
- 20.4. If sent by email, notices are taken to be received at the time shown in the email as the time the email was sent.
- 20.5. Kegstar must notify the ACCC of a change to its contact details within three Business Days.
- 20.6. Any notice or communication will be sent to the most recently advised contact details and subject to clauses 20.3 and 20.4, will be taken to be received.

21. Defined terms and interpretation

Definitions in the Dictionary

- 21.1. A term or expression starting with a capital letter:
- (a) which is defined in the Dictionary in Part 1 of Schedule 1 (Dictionary), has the meaning given to it in the Dictionary; or
 - (b) which is defined in the Corporations Act, but is not defined in the Dictionary, has the meaning given to it in the Corporations Act.

Interpretation

- 21.2. Part 2 of Schedule 1 (Interpretation) sets out rules of interpretation for this Undertaking.

Executed as an Undertaking

Executed by Kegstar Pty Ltd (ABN 81 157 818 990) pursuant to section 127(1) of the *Corporations Act 2001* by:

Signature of director		Signature of a director/company secretary
Name of director (print)		Name of director/company secretary (print)
Date		Date

Accepted by the ACCC pursuant to section 87B of the *Competition and Consumer Act 2010* (Cth) on:

Date

and signed on behalf of the ACCC:

Chair

Date

Schedule 1 – Dictionary and interpretation

1. Dictionary

ACCC means the Australian Competition and Consumer Commission.

Act or CCA means the *Competition and Consumer Act 2010* (Cth).

Approved Audit Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Independent Auditor will audit and report upon compliance with this Undertaking.

Approved Independent Auditor means the person approved by the ACCC and appointed under clause 10 of this Undertaking.

Approved Terms of Appointment means the terms of appointment for the Approved Independent Auditor, as applicable, as approved by the ACCC in accordance with the terms of this Undertaking.

Asset Sale Agreement means the agreement between Kegstar and Konvoy for Kegstar to acquire certain assets from Konvoy dated 20 June 2025.

Associated Entity has the meaning given by section 50AAA of the Corporations Act.

Audit Report has the meaning given to it in clause 10.12 of this Undertaking.

Australian Accounting Standards means the accounting standards issued by the Australian Accounting Standards Board from time to time.

Business Day means a day other than a Saturday or Sunday on which banks are open for business generally in New South Wales.

Change of Control means:

- (a) the assignment or other transfer of the legal or beneficial ownership of some or all of the share capital of Kegstar to any other person or entity that may impact compliance with this Undertaking in its entirety; or
- (b) the sale or transfer of any assets necessary, or which may be necessary, to enable Kegstar to continue to comply with this Undertaking in its entirety.

Commencement Date means the date described in clause 3.1 of this Undertaking.

Completion means the date that the Proposed Acquisition legally takes effect under the Asset Sale Agreement.

Contract Pricing means the prices payable under a contract for the supply of Keg Pooling Services, comprising:

- (a) the "Total Price Per-Fill" charge payable for each fill of a keg, as determined by reference to the size of the keg and the price category applicable to each delivery destination (including wholesalers and venues);
- (b) if relevant, any fixed or periodic fees payable for the use of kegs at the customer's on-site tap room or pub;

- (c) if relevant, any fees or charges for the distribution of kegs internationally; and
- (d) if relevant, any market collection charges payable for kegs collected from the market by the customer,

but, for the avoidance of doubt, does not include GST or any other taxes imposed on or in connection with those amounts.

Corporations Act means the *Corporations Act 2001* (Cth).

Customer Contract means a contract between Kegstar and a customer for the supply of Keg Pooling Services, including any existing contract of Kegstar as at the Commencement Date and any contract assumed by Kegstar from Konvoy as a consequence of the Proposed Acquisition.

Customer Exclusivity Provision means any term in a Customer Contract that:

- (e) requires a customer to use Kegstar as their exclusive provider of kegs or Keg Pooling Services; or
- (f) imposes a Minimum Volume Commitment on the customer.

Entities Connected has the meaning given by section 64B of the Corporations Act.

Establishment Audit has the meaning given to it in clause 10.13(a) of this Undertaking.

Existing Konvoy Customer means a customer that had a written contract for Konvoy to supply it with Keg Pooling Services on foot as at 1 January 2026.

Existing Konvoy Customer Contract means, in respect of an Existing Konvoy Customer, the contract between Konvoy and that Existing Konvoy Customer for the supply of Keg Pooling Services that was in force as at 1 January 2026.

Independent Price Expert means an accountant or other professional with appropriate expertise in valuation, who:

- (a) is independent of Kegstar and the relevant customer;
- (b) has no material conflict of interest in relation to the subject matter of the determination;
- (c) is not the same person or firm as the Approved Independent Auditor; and
- (d) is appointed to act as an independent expert (and not as an arbitrator) for the purposes of clause 8 of this Undertaking.

Keg Pooling Services means the supply of services by which a provider owns and manages a shared pool of kegs, under which customers rent kegs on a pay per fill basis and the service provider retains ownership and responsibility for fleet management, reverse logistics maintenance, storage and redeployment of kegs across multiple customers.

Keg Purchase Notice means a written notice given by a customer to Kegstar of its intention to exercise the Keg Purchase Option in accordance with clause 8.2.

Keg Purchase Option means the option available to customers under clause 8.1 to purchase kegs from Kegstar upon expiration or termination of a Customer Contract.

Kegstar Purchase Quantity has the meaning given at clause 8.3.

Kegstar means Kegstar Pty Ltd (ABN 81 157 818 990).

Kegstar's Standard Terms and Conditions means the terms and conditions for the supply of Keg Pooling Services set out in Kegstar's Keg Management Agreement provided as **Confidential Attachment 1** to this Undertaking.

Konvoy means Konvoy Holdings Pty Ltd (Receivers and Managers Appointment) (Subject to Deed of Company Arrangement) (ABN 66 634 234 549).

Konvoy Customer Offer has the meaning given at clause 7.1.

KPIs has the meaning given at clause 9.1.

Market Value means, in respect of any kegs the subject of a purchase option under clause 8, the value determined as follows:

- (a) where the kegs to be purchased are kegs that were specifically purchased by Kegstar for the purpose of servicing the customer, or were purchased by Kegstar from the customer when the customer commenced receiving Keg Pooling Services from Kegstar, the Market Value will be the lower of:
 - (i) the Written Down Book Value of those kegs; and
 - (ii) the market value of kegs of the same age and condition as those kegs that will be transferred to the customer; and
- (b) in all other cases, the Market Value will be the lower of:
 - (i) the average Written Down Book Value of kegs of the average age of the kegs that will be transferred to the customer; and
 - (ii) the market value of kegs of the same age and condition as those kegs that will be transferred to the customer.

Minimum Volume Commitment means a contractual obligation imposed on a customer to acquire a minimum quantity or volume of Keg Pooling Services from Kegstar, other than to the extent such an obligation arises under section 4.1 of Kegstar's Standard Terms and Conditions (or under the same or similar clause in a Customer Contract).

Notification Application has the meaning given at clause 2.3.

Public Acquisitions Register means the ACCC's public register of notified acquisitions, available at www.accc.gov.au.

Proposed Acquisition has the meaning given at clause 2.4.

Proposed Independent Auditor means a person named in a Proposed Independent Auditor Notice.

Proposed Independent Auditor Notice has the meaning given to it in clause 10.2 of this Undertaking.

Public Mergers Register means the ACCC's public register of merger clearances, available at www.accc.gov.au.

Public Section 87B Undertakings Register means the ACCC's public register of section 87B undertakings, available at www.accc.gov.au.

Rebranding Cost means the actual cost to Kegstar of rebranding the kegs the subject of a Keg Purchase Notice from Kegstar branding to a neutral or customer-specified finish.

Supplier Exclusivity Provision means any term in a contract between Kegstar and a supplier of services to Kegstar (including suppliers of logistics services) requiring the supplier to exclusively supply their services to Kegstar.

Related Bodies Corporate has the meaning given to it by section 50 of the Corporations Act.

Related Entities has the meaning given to it by section 9 of the Corporations Act.

Related Parties has the meaning given to it by section 228 of the Corporations Act.

Undertaking is a reference to all provisions of this document, including its schedules and as varied from time to time under section 87B of the Act.

Written Down Book Value means, in respect of any particular kegs, the recorded book value of those kegs as recorded in Kegstar's accounts, prepared consistently in accordance with the Australian Accounting Standards.

2. Interpretation

- 2.1 In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:
- (a) a reference to this Undertaking includes all of the provisions of this document including its schedules;
 - (b) headings are inserted for convenience only and do not affect the interpretation of this Undertaking;
 - (c) if the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day;
 - (d) a reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision;
 - (e) a reference in this Undertaking to any company includes its Related Bodies Corporate;
 - (f) a reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced;
 - (g) a reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking;
 - (h) an expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency;

- (i) where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning;
- (j) a word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular, and a reference to any gender also denotes the other genders;
- (k) a reference to the words 'such as', 'including', 'particularly' and similar expressions is to be construed without limitation;
- (l) a construction that would promote the purpose - or object - underlying the Undertaking (whether expressly stated or not) will be preferred to a construction that would not promote that purpose or object;
- (m) material not forming part of this Undertaking may be considered to:
 - (i) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or
 - (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking;
- (n) in determining whether consideration should be given to any material in accordance with paragraph (m), or in considering any weight to be given to any such material, regard must be had, in addition to any other relevant matters, to the:
 - (i) effect that reliance on the ordinary meaning conveyed by the text of the clause would, have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and
 - (ii) need to ensure that the result of the Undertaking is to completely address any ACCC competition concerns;
- (o) the ACCC may authorise the ACCC Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose;
- (p) in performing its obligations under this Undertaking, the Applicant will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking;
- (q) a reference to:
 - (i) a thing (including, but not limited to, a chose in action or other right) includes a part of that thing;
 - (ii) a party includes its successors and permitted assigns; and
 - (iii) a monetary amount is in Australian dollars.

Schedule 2 – Proposed Undertaking Appointment Form

This form sets out the information required by the ACCC in relation to proposed appointment of the position of Proposed Independent Auditor under the Undertaking.

Please note that it is an offence under s137.1 of the *Criminal Code Act 1995* (Cth) to give information to a Commonwealth entity knowing that the information is false or misleading or omits any matter or thing without which the information is misleading.

1. Method of Delivery to the ACCC

The completed form with requested documents attached may be provided to the ACCC using the following method:

Email

Subject line: Proposed Independent Auditor Notice – [insert name of undertaking]

Address mergers@accc.gov.au

Attention Executive General Manager – Mergers and Exemptions Assessment Division

With an email copy sent to:

Address: mergersru@accc.gov.au

Attention Director, Remedies Unit, Mergers and Exemptions Assessment Division

2. Information Required

The ACCC requires the following information in order to assess a proposed Independent Auditor.

2.1. Proposed Undertaking Appointment details.

- (a) the name of the Proposed Independent Auditor; and
- (b) the name of the Proposed Independent Auditor's employer and contact details including:
 - (i) Address;
 - (ii) Contact name;
 - (iii) Telephone number;
 - (iv) Other contact details

2.2. A submission containing the following information:

- (a) details of the Proposed Independent Auditor's qualifications and experience relevant to his or her proposed role pursuant to the Undertaking;

- (b) the names of the owner(s) and the director(s) of the Proposed Independent Auditor's employer;
- (c) details of any of the following types of relationships between Kegstar and the Proposed Independent Auditor or the Proposed Independent Auditor's employer or confirmation that no such relationship exists whether within Australia or outside of Australia:
 - (i) Kegstar and the Proposed Independent Auditor's employer are Associated Entities;
 - (ii) Kegstar is an Entity Connected with the Proposed Independent Auditor's employer
 - (iii) The Proposed Independent Auditor's employer is an Entity Connected with Kegstar;
 - (iv) Kegstar and the Proposed Independent Auditor's employer are Related Entities;
 - (v) Kegstar and the Proposed Independent Auditor's employer are Related Parties;
 - (vi) any Related Party, Related Entity or Entity Connected with Kegstar is a Related Party, Related Entity or Entity Connected with the Proposed Independent Auditor;
 - (vii) Kegstar and the Proposed Independent Auditor or the Proposed Independent Auditor's employer have a contractual relationship or had one within the past three years, other than those attached to this form;
 - (viii) the Proposed Independent Auditor's employer is a supplier of Kegstar or has been in the past three years;
 - (ix) Kegstar is a supplier of the Proposed Independent Auditor's employer or has been in the past three years; and
 - (x) any other relationship between Kegstar and the Proposed Independent Auditor or the Proposed Independent Auditor's employer that allows one to affect the business decisions of the other;
- (d) details of any existing or past contractual relationships between the Proposed Independent Auditor or the Proposed Independent Auditor's employer and the ACCC within the past three years.

2.3. A document outlining the terms of appointment for the Proposed Independent Auditor. This should identify the basis on which fees will be paid, including disclosure of any proposed performance-based fees.